STATE OF INDIANA	)	IN THE CARROLL CIRCUIT COURT
	)SS:	
COUNTY OF CARROLL	)	CAUSE NO. 08C01-2210-MR-1

STATE OF INDIANA, Plaintiff,	)	
VS.	)	ORDER OR JUDGMENT OF THE COURT
RICHARD M. ALLEN, Defendant.	)	

The Court, having had this matter under advisement following a hearing, and having considered the evidence and the arguments of Counsel, now finds as follows:

1. Defendant is currently incarcerated in the Westville Correctional Facility under a "safekeeping order" issued November 3, 2022.
2. The Court Order states that the Court "FINDS that Defendant is an inmate awaiting trial and is in imminent danger of serious bodily injury or death, or represents a substantial threat to the safety of others."
3. The evidence presented at the hearing on defendant's Motion to Reconsider did not support many of the allegations advanced by defendant counsel. In fact, the evidence presented demonstrated that the Defendant is treated more favorably than other inmates housed at the Westville Correctional Facility.

In light of the evidence presented, the Court has reconsidered the original Safekeeping Order and finds it is reasonable and necessary to ensure the defendant's safety and to prevent serious bodily injury to himself. The Department of Correction has provided, and will continue to provide Defendant with the necessarily medical services, including any mental health services. If the

Department of Correction believes a facility other than Westville is more appropriate, or more convenient for Counsel, the Court is confident that the Department of Correction will move the defendant accordingly.

Dated: July 19, 2023

Frances C. Gull, Special Judge
Carroll Circuit Court
Carroll County, Indiana

NOTICE TO BE GIVEN BY: __XX__COURT __ CLERK ____ OTHER

PROOF OF NOTICE UNDER TRIAL RULE 72(D)

A copy of this entry was served either by mail to the address of record, deposited in the attorney's distribution box, or personally distributed to the following persons:

cc: Bradley Rozzi – Attorney for Defendant
Andrew Baldwin – Attorney for Defendant
Prosecuting Attorney Nicholas McLeland
Indiana Department of Correction
Court File

DATED: _____

INITIAL OF PERSON WHO NOTIFIED PARTIES: _____ COURT _____CLERK